

24BBCV00291 24BBCV00291

County: los-angeles

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Case Number: 24BBCV00291 Hearing Date: July 10, 2026 Dept: A

MOTION FOR ATTORNEY'S FEES

Los

Angeles Superior Court Case # 24BBCV00291

MP: Plaintiff

Ernesto Estrada

RP: Defendant American Honda Motor Company, Inc.

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT BACKGROUND:

Ernesto Estrada

("Plaintiff") alleges that on August 23, 2019, he purchased a 2019 Honda HR-V,

which was warranted by American Honda Motor Company ("Defendant"). Plaintiff alleges that the vehicle was delivered with serious defects and nonconformities to the warranty. He alleges he presented the vehicle on multiple occasions for repair, but Defendant was unable to conform the vehicle to applicable warranties after a reasonable number of attempts.

The Complaint, filed February 5, 2024, alleges: (1) Violation of Civil Code, § 1793.2(d); (2) Violation of Civil Code, § 1793.2(b); (3) Violation of Civil Code, § 1793.2(a)(3); (4) Breach of Express Written Warranty (Civil Code, §§ 1791.2(a), 1794); and (5) Breach of Implied Warranty of Merchantability (Civil Code, §§ 1791.1, 1794).

On November 19, 2025, Plaintiff filed a Notice of Conditional Settlement of Entire Case. On January 20, 2026, the Court held an Order to Show Cause re: Dismissal (Settlement) and dismissed the matter without prejudice subject to retained jurisdiction pursuant to C.C.P. § 664.6(f).

MOTION ON CALENDAR:

On March 20, 2026, Plaintiff filed a Motion for Attorney's Fees. On June 26, 2026, Defendant filed an opposition. On July 2, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A prevailing party in an action under the Song-Beverly Act may be entitled to reasonable attorney's fees. (Civ. Code § 1794(d); see also C.C.P. § 1032(a)(4).) The calculation of attorney's fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (Graciano v. Robinson Ford Sales (2006) 144 Cal.App.4th 140, 154; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817-819.) Nonetheless, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

Once an attorney has presented evidence of their actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable, unless “special circumstances” render the award unjust. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.)

An award of attorney fees may be based on counsel's declarations, without production of detailed time records. (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.) The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.)

The California Supreme Court has opined that an attorney should not receive a windfall relative to statutes which award attorney's fees. As such, “plaintiffs' counsel are not permitted to take contractual fees in addition to statutory fees: If the contingency fee is larger than the statutory fee award, counsel is permitted to accept that fee, with a setoff for statutory fees received. If the contingency fee is smaller than the statutory fee, counsel must reimburse the plaintiff from the statutory award for any amounts already paid by the client pursuant to the contingency contract.” (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 401 [citing *Flannery v. Prentice* (2001) 26 Cal.4th 572, 577].)

ANALYSIS:

Plaintiff moves for \$28,144.50 in attorney's fees.

A.

Prevailing Party and Basis for Attorney's Fees

Plaintiff's counsel, Michael Figura, states that the parties settled the matter on October 31, 2025. (Figura Decl., ¶10.) A redacted copy of the Confidential Settlement Agreement and Release of All Claims (“Settlement Agreement”) states in relevant part under section 5:

ATTORNEYS

FEES If the parties are

unable to resolve attorney's fees and costs, PLAINTIFF may seek reasonable costs, expenses, and attorney's fees pursuant to a properly notice[d] motion pursuant to Civil Code Section 1794(d). If a motion is needed, this shall not be construed as a waiver of AHM's rights to answer argument in opposition thereto based on the reasonableness of the fees, costs, or expenses sought.

(Settlement Agreement, § 5.)

Based on the parties' Settlement Agreement and Civil Code, § 1794(d), there is a contractual and statutory basis for fees. The parties do not contest that Plaintiff is the prevailing party and entitled to seek attorney's fees by motion.

B. Amount
of Reasonable Attorney's Fees

Plaintiff seeks attorney's fees in the amount of \$28,144.50, which includes: (1) \$25,844.50 in attorney's fees; and (2) an additional \$2,300 for counsel to review Defendant's opposition, draft a reply brief, and attend the hearing.

Mr. Figura provides a copy of the firm's billing records and costs. (Id., ¶125, Ex. 9 [Billing Record].) The breakdown of Plaintiff's counsel's time is as follows. The Court notes that the Plaintiff's counsel did not account for the changes in hourly rates over the years, but instead multiplied the hours spent by the most current hourly rate.

Carey Wood (senior partner, admitted 2013) – \$500/hour in 2022, \$520/hour in January 2024, \$525/hour for 2024, \$540/hour in 2025, and \$560/hour in January 2026. Ms. Wood spent 3.2 hours. Using the \$560/hour rate, this amounts to a total of \$1,792.

Michael Figura (associate attorney, admitted to New York bar in 2013 and California bar in 2017) – \$430/hour in May 2024; \$450/hour in February 2025; and \$460/hour in January 2026. Mr. Figura spent 40.9 hours for \$18,814.

Iraida Gonzalez

(senior associate, admitted 2020) - \$415/hour in 2024, \$475 in November 2025, and \$480/hour in January 2026. Ms. Gonzalez spent 1.5 hours for \$720.

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Bobby C. Walker (associate

attorney, admitted 2018) – \$400/hour in June 2023, \$415/hour in January 2024,

\$430/hour in February 2025, and \$440/hour in January 2026. Mr. Walker spent 2.5 hours for \$1,100.

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Paralegals at \$215.00/hour:

o Daisey Hernandez: 0.5 hour for \$107.50

o Jessica Caro: 3.9 hours for \$838.50

o Kenneth Lima: 1.6 hours for \$344

o Susana Alatorre: 7 hours for \$1,505

o Marbely Gutierrez: 1.2 hours for \$258

o Karla Rivas: 1.2 hours for \$258

o Maria Chavarin: 0.5 hour for \$107.50

(Figura Decl., ¶¶12-16.)

Total, Plaintiff's counsel's

firm spent 64 hours on this action. However,

as noted above, the hours spent by each attorney or paralegal was multiplied by

the most current hourly rate, as opposed to the billing rates assigned during

certain years. Using Ms. Wood's time as

an example, if taking the different hourly rates from 2022 to 2026, the total

amount of fees she incurred is actually \$1,684.

(The Court notes that in opposition, Defendant does not argue this but

instead argues that the hourly rates, as a whole, are unreasonable.)

1.

Hourly Rates

Defendant opposes the hourly rates charged by Plaintiff's counsel, arguing that the rates are excessive for a routine lemon law case. Defendant argues that the reasonable rates should be from \$225/hour to \$300/hour for attorneys. (Thayer Decl., Ex. A [Summary of Objectionable Specific Charges in Plaintiff's Billing Invoice at p.12].)

The Court finds some of the hourly rates to be excessive. The Court notes that while Plaintiff provides minute orders from other superior court cases, those minute orders, sometimes referred to as "In Re Another Judge" or "In Re Down the Hall" are not binding authority in a trial court. (See Figura Decl., ¶¶17-22, Exs. 3-8.)

While some Song-Beverly cases can be complex matters, that does not appear to be the case in this instance. This matter does not appear to have been a highly sophisticated or complex matter. While the Court appreciates counsels' work on the matter, the Court will reduce the hourly rates as follows:

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Carey Wood –
\$500/hour

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Michael Figura - \$400/hour

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Iraida Gonzalez -
\$400/hour

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Bobby C. Walker - \$350/hour

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Paralegals -
\$200/hour

From these revised rates, the Court will consider whether reductions to the hours billed are appropriate.

2.

Hours Billed

First, Defendant seeks a reduction of time for block billing in the amount of 4.1 hours or \$1,729 total. (Def.'s Summary of Objectionable Charges at pp.12-13.) The Court has reviewed the specific entries and declines to reduce time for the specific charges.

Second, Defendant seeks to reduce duplicative billing entries. (Def.'s Summary of Objectionable Charges at p.13.) The Court will reduce the following:

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May 24, 2024: Carey Wood's 0.1 hour billed, as duplicative of Michael Figura's time.

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May 31, 2024: Carey Wood's 0.1 hour billed, as duplicative of Michael Figura's time.

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Total: 0.2 hour of Carey Wood's time billed.

The Court declines to reduce time for Michael Figura's time spent drafting different discovery requests as "duplicative," as argued by Defendant as his time spent was for different types of discovery.

Third, Defendant seeks to reduce Plaintiff's counsel's administrative/clerical billing. (Def.'s Summary of Objectionable Charges at pp.13-14.) The Court has reviewed the entries and finds that they are not unreasonable in amount. Furthermore, the cited administrative tasks were mostly done by the paralegals and not by counsel.

Fourth, Defendant seeks to reduce counsel's "questionable" billing entries, which is comprised of emailing opposing counsel and updating repair chronology. (Def.'s Summary of Objectionable Charges at p.14.) The

Court does not find Michael Figura's 0.1 hour spent emailing opposing counsel to be unreasonable. Furthermore, the paralegal's work in updating the repair chronology billed at 0 hours need not be reduced as no time/fees were billed for this entry.

Fifth, Defendant argues that anticipated billing to review the opposition, prepare the reply, and attend the hearing on this attorney's fees motion should be reduced from 5 hours to \$0. Based on the \$2,300 requested for 5 hours, this would amount to \$460/hour. With the reply, Michael Figura provides his supplemental declaration stating that he spent 3.5 hours reviewing the opposition and drafting the reply and anticipates spending 1.5 hours at the hearing, for the full \$2,300 anticipated fees requested. (Figura Suppl. Decl., ¶¶3-5.) The Court will award the incurred and anticipated fees.

Based on the reduced hourly rates, the Court adjusts the total attorney's fees as follows:

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Carey Wood – 3 hours
(0.2 reduction) at \$500/hour for \$1,500

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Michael Figura – 40.9
hours (no reduction) at \$400/hour for \$16,360

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Iraida Gonzalez – 1.5
hours (no reduction) at \$400/hour for \$600

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Bobby C. Walker – 2.5
hours (no reduction) at \$350/hour for \$875

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Daisey Hernandez: 0.5
hour at \$200/hour for \$100

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Jessica Caro: 3.9

hours at \$200/hour for \$780

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Kenneth Lima: 1.6

hours at \$200/hour for \$320

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Susana Alatorre: 7

hours at \$200/hour for \$1,400

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Marbely Gutierrez:

1.2 hours at \$200/hour for \$240

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Karla Rivas: 1.2

hours at \$200/hour for \$240

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Maria Chavarin: 0.5

hour at \$200/hour for \$100

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Anticipated time for

this motion: \$2,300

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Total: \$24,815

Accordingly, the motion for attorney's fees is granted in
the amount of \$24,815.

RULING:

In the event a party
requests a signed order or the court in its discretion elects to sign a formal
order, the following form will be either electronically signed or signed in

hard copy and entered into the court's records.

ORDER

Plaintiff Ernesto

Estrada's Motion for Attorney's Fees came on regularly for hearing on July 10, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

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MOTION FOR ATTORNEY'S FEES IS GRANTED in the amount of \$24,815.

Plaintiff

TO GIVE NOTICE.

IT IS SO ORDERED.